

**CONSOLIDATION/
CHANGE OF BY-LAWS**

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pages to the top left-hand corner.

**New South Wales
Strata Schemes Management Act 2015
Real Property Act 1900**

PRIVACY NOTE: Section 31B of the Real Property Act 1900 (RP Act) authorises the Registrar General to collect the information required by this form for the establishment and maintenance of the Real Property Act Register. Section 96B RP Act requires that the Register is made available to any person for search upon payment of a fee, if any.

(A) **TORRENS TITLE**

For the common property
CP/SP 100853

(B) **LODGED BY**

Document Collection Box	Name		CODE CH
	Company	GRACE LAWYERS	
	Address	PO BOX 20727, WORLD SQUARE NSW 2002	
	E-mail		
	Contact Number		
Customer Account Number (IF APPLICABLE) Reference HSM100853			

- (C) The Owner-Strata Plan No. 100853 certify that a special resolution was passed on 27/4/2023
(D) pursuant to the requirements of section 141 of the Strata Schemes Management Act 2015, by which the by-laws were changed as follows –

(E) Repealed by-law No. NOT APPLICABLE

Added by-law No. 21

Amended by-law No. NOT APPLICABLE

as fully set out below :

"ANNEXURE A" – APPROVED FORM 10

"ANNEXURE B" – CONSOLIDATED BY-LAWS



[Handwritten signature]

- (F) A consolidated list of by-laws affecting the above mentioned strata scheme and incorporating the change referred to at Note (E) is annexed hereto and marked as Annexure B

- (G) The seal of The Owners-Strata Plan No. 100853 was affixed on 27/4/2023 in the presence of the following person(s) authorised by section 273 Strata Schemes Management Act 2015 to attest the affixing of the seal:

Signature :

[Handwritten signature of Darrell Ryan]

Name : DARRELL RYAN

Authority : STRATA MANAGER

Signature :

Name :

Authority :

Approved Form 10

Certificate re Initial Period

The owners corporation certifies that in respect of the strata scheme:

*that the initial period has expired.

~~*the original proprietor owns all of the lots in the strata scheme and any purchaser under an exchanged contract for the purchase of a lot in the scheme has consented to any plan or dealing being lodged with this certificate~~

The seal of The Owners - Strata Plan No 100853 was affixed on ^ 27/04/2023 in the presence of the following person(s) authorised by section 273 *Strata Schemes Management Act 2015* to attest the affixing of the seal.

Signature:  Name: DARRELL RYAN Authority: STRATA MANAGER

Signature: Name: Authority:

^ Insert appropriate date

* Strike through if inapplicable.

Text below this line is part of the instructions and should not be reproduced as part of a final document.

1. This form must be provided in its entirety as shown above.
2. Any inapplicable parts should be struck through.
3. This certificate is required to accompany any document which proposes action not permitted during the initial period and when the common property title does not have a notification indicating the initial period has been expired.



CONSOLIDATED BY-LAWS – STRATA PLAN 100853

STRATA SCHEMES MODEL BY-LAWS 2016 SCHEDULE 3 – RESIDENTIAL

BY-LAWS FOR 47 YORSTON STREET, WARNERS BAY NSW 2282

1 VEHICLES

An Owner or Occupier of a Lot must not park or stand any motor or other vehicle on Common Property, or permit a motor vehicle to be parked or stood on Common Property, except with the prior written approval of the Owners Corporation or as permitted by a sign authorised by the Owners Corporation.

2 CHANGES TO COMMON PROPERTY

- (1) An Owner or person authorised by an Owner may install, without the consent of the Owners Corporation:
 - (A) any locking or other safety device for protection of the Owner's Lot against intruders or to improve safety within the Owner's Lot, or
 - (B) any screen or other device to prevent entry of animals or insects on the Lot, or
 - (C) any structure or device to prevent harm to children.
- (2) Any such locking or safety device, screen, other device or structure must be installed in a competent and proper manner and must have an appearance, after it has been installed, in keeping with the appearance of the rest of the building.
- (3) Clause (1) does not apply to the installation of any thing that is likely to affect the operation of fire safety devices in the Lot or to reduce the level of safety in the Lots or Common Property.
- (4) The Owner of a Lot must:
 - (A) maintain and keep in a state of good and serviceable repair any installation or structure referred to in Clause (1) that forms part of the Common Property and that services the Lot, and
 - (B) repair any damage caused to any part of the Common Property by the installation or removal of any locking or safety device, screen, other device or structure referred to in Clause (1) that forms part of the Common Property and that services the Lot

3 DAMAGE TO LAWNS & PLANTS ON COMMON PROPERTY

An Owner or Occupier of a Lot must not, except with the prior written approval of the Owners Corporation:

- (A) damage any lawn, garden, tree, shrub, plant or flower being part of or situated on Common Property, or
- (B) use for his or her own purposes as a garden any portion of the Common Property.

4 OBSTRUCTION OF COMMON PROPERTY

An Owner or Occupier of a Lot must not obstruct lawful use of Common Property by any person except on a temporary and non-recurring basis.

5 KEEPING OF ANIMALS

An Owner or Occupier of a Lot may keep an animal on the Lot or the Common Property with the written approval of the Owners Corporation.

- (1) The Owners Corporation must not unreasonably withhold its approval of the keeping of an animal on a Lot or the Common Property and must give an Owner or Occupier written reasons for any refusal to grant approval.




- (2) The Owners Corporation must not unreasonably withhold its approval of the keeping of an animal on a Lot or the Common Property and must give an Owner or Occupier written reasons for any refusal to grant approval.
- (3) If an Owner or Occupier of a Lot keeps an animal on the Lot, the Owner or Occupier must:
 - (A) keep the animal within the Lot, and
 - (B) supervise the animal when it is on the Common Property, and
 - (C) take any action that is necessary to clean all areas of the Lot or the common property that are soiled by the animal.
- (4) An Owner or Occupier of a Lot who keeps an assistance animal on the Lot must, if required to do so by the Owners Corporation, provide evidence to the Owners Corporation demonstrating that the animal is an assistance animal as referred to in section 9 of the Disability Discrimination Act 1992 of the Commonwealth.

6 NOISE

An Owner or Occupier of a Lot, or any invitee of an Owner or Occupier of a Lot, must not create any noise on a Lot or the Common Property likely to interfere with the peaceful enjoyment of the Owner or Occupier of another Lot or of any person lawfully using Common Property.

7 BEHAVIOUR OF OWNERS, OCCUPIERS & INVITEES

- (1) An Owner or Occupier of a Lot, or any invitee of an Owner or Occupier of a Lot, when on Common Property must be adequately clothed and must not use language or behave in a manner likely to cause offence or embarrassment to the Owner or Occupier of another Lot or to any person lawfully using Common Property.
- (2) An Owner or Occupier of a Lot must take all reasonable steps to ensure that invitees of the Owner or Occupier:
 - (A) do not behave in a manner likely to interfere with the peaceful enjoyment of the Owner or Occupier of another Lot or any person lawfully using Common Property, and
 - (B) without limiting paragraph (a), that invitees comply with Clause (1).

8 CHILDREN PLAYING ON COMMON PROPERTY

- (1) Any child for whom an Owner or Occupier of a Lot is responsible may play on any area of the Common Property that is designated by the Owners Corporation for that purpose but may only use an area designated for swimming while under adult supervision.
- (2) An Owner or Occupier of a Lot must not permit any child for whom the Owner or Occupier is responsible, unless accompanied by an adult exercising effective control, to be or remain on Common Property that is a laundry, car parking area or other area of possible danger or hazard to children.

9 SMOKE PENETRATION

- (1) An Owner or Occupier, and any invitee of the Owner or Occupier, must not smoke tobacco or any other substance on the Common Property.
- (2) An Owner or Occupier of a Lot must ensure that smoke caused by the smoking of tobacco or any other substance by the Owner or Occupier, or any invitee of the Owner or Occupier, on the Lot does not penetrate to the Common Property or any other Lot.

10 PRESERVATION OF FIRE SAFETY

The Owner or Occupier of a Lot must not do anything or permit any invitees of the Owner or Occupier to do anything on the Lot or Common Property that is likely to affect the operation of fire safety devices in the parcel or to reduce the level of fire safety in the Lots or Common Property.

11 STORAGE OF INFLAMMABLE LIQUIDS & OTHER SUBSTANCES & MATERIALS

- (1) An Owner or Occupier of a Lot must not, except with the prior



written approval of the Owners Corporation, use or store on the Lot or on the Common Property any inflammable chemical, liquid or gas or other inflammable material.

- (2) This by-law does not apply to chemicals, liquids, gases or other material used or intended to be used for domestic purposes, or any chemical, liquid, gas or other material in a fuel tank of a motor vehicle or internal combustion engine.

12 APPEARANCE OF LOT

- (1) The Owner or Occupier of a Lot must not, without the prior written approval of the Owners Corporation, maintain within the Lot anything visible from outside the Lot that, viewed from outside the Lot, is not in keeping with the rest of the building.
- (2) This by-law does not apply to the hanging of any clothing, towel, bedding or other article of a similar type in accordance with by-law 14.

13 CLEANING WINDOWS & DOORS

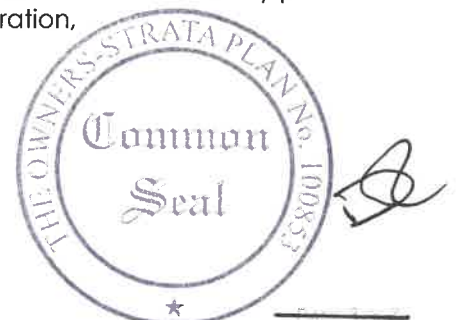
- (1) Except in the circumstances referred to in Clause (2), an Owner or Occupier of a Lot is responsible for cleaning all interior and exterior surfaces of glass in windows and doors on the boundary of the Lot, including so much as is Common Property.
- (2) The Owners Corporation is responsible for cleaning regularly all exterior surfaces of glass in windows and doors that cannot be accessed by the Owner or Occupier of the Lot safely or at all.

14 HANGING OUT OF WASHING

- (1) An Owner or Occupier of a Lot may hang any washing on any lines provided by the Owners Corporation for that purpose. The washing may only be hung for a reasonable period.
- (2) An Owner or Occupier of a Lot may hang washing on any part of the Lot other than over the balcony railings. The washing may only be hung for a reasonable period.
- (3) In this by-law:
WASHING includes any clothing, towel, bedding or other article of a similar type.

15 DISPOSAL OF WASTE – BINS FOR INDIVIDUAL LOTS *(Applicable where individual Lots have bins)*

- (1) An Owner or Occupier of a Lot must not deposit or throw on the Common Property any rubbish, dirt, dust or other material or discarded item except with the prior written approval of the Owners Corporation.
- (2) An Owner or Occupier of a Lot must not deposit in a toilet, or otherwise introduce or attempt to introduce into the plumbing system, any item that is not appropriate for any such disposal (for example, a disposable nappy).
- (3) An Owner or Occupier must:
- (A) comply with all reasonable directions given by the Owners Corporation as to the disposal and storage of waste (including the cleaning up of spilled waste) on Common Property, and
 - (B) comply with the local council's guidelines for the storage, handling, collection and disposal of waste.
- (3) An Owner or Occupier of a Lot must maintain bins for waste within the Lot, or on any part of the Common Property that is authorised by the Owners Corporation, in clean and dry condition and appropriately covered.
- (5) An Owner or Occupier of a Lot must not place anything in the bins of the Owner or Occupier of any other Lot except with the permission of that Owner or Occupier.
- (6) An Owner or Occupier of a Lot must place the bins within an area designated for collection by the Owners Corporation



not more than 12 hours before the time at which waste is normally collected and, when the waste has been collected, must promptly return the bins to the Lot or other area authorised for the bins.

- (7) An Owner or Occupier of a Lot must notify the local council of any loss of, or damage to, bins provided by the local council for waste.
- (8) The Owners Corporation may give directions for the purposes of this by-law by posting signs on the Common Property with instructions on the handling of waste that are consistent with the local council's requirements or giving notices in writing to Owners or Occupiers of Lots.
- (9) In this by-law:
BIN includes any receptacle for waste.
WASTE includes garbage and recyclable material.

16 DISPOSAL OF WASTE – SHARED BINS (*applicable where bins are shared by Lots*)

- (1) An Owner or Occupier of a Lot must not deposit or throw on the Common Property any rubbish, dirt, dust or other material or discarded item except with the prior written approval of the Owners Corporation.
- (2) An Owner or Occupier of a Lot must not deposit in a toilet, or otherwise introduce or attempt to introduce into the plumbing system, any item that is not appropriate for any such disposal (for example, a disposable nappy).
- (3) An Owner or Occupier must:
 - (A) comply with all reasonable directions given by the Owners Corporation as to the disposal and storage of waste (including the cleaning up of spilled waste) on Common Property, and
 - (B) comply with the local council's guidelines for the storage, handling, collection and disposal of waste.
- (4) The Owners Corporation may give directions for the purposes of this by-law by posting signs on the Common Property with instructions on the handling of waste that are consistent with the local council's requirements or giving notices in writing to Owners or Occupiers of Lots.
- (5) In this by-law:
BIN includes any receptacle for waste.
WASTE includes garbage and recyclable material.

17 CHANGE IN USE OF LOT TO BE NOTIFIED

- (1) An Occupier of a Lot must notify the Owners Corporation if the Occupier changes the existing use of the Lot.
- (2) Without limiting Clause (1), the following changes of use must be notified:
 - (A) a change that may affect the insurance premiums for the Strata Scheme (for example, if the change of use results in a hazardous activity being carried out on the Lot, or results in the Lot being used for commercial or industrial purposes rather than residential purposes),
 - (B) a change to the use of a Lot for short-term or holiday letting.
- (3) The notice must be given in writing at least 21 days before the change occurs or a lease or sublease commences.

18 COMPLIANCE WITH PLANNING & OTHER REQUIREMENTS

- (1) The Owner or Occupier of a Lot must ensure that the Lot is not used for any purpose that is prohibited by law.
- (2) The Owner or Occupier of a Lot must ensure that the Lot is not occupied by more persons than are allowed by law to occupy the Lot.

19 HUNTER WATER BY-LAW



- (1) In this by-law the following provisions apply:
- ACCESSIBLE** means the unfettered and unencumbered ability of Hunter Water to access the master meter and the Sub meters for reading and recording purposes.
- AUTOMATED METER READING** means the system to be developed by Hunter Water for implementation in the future as another means of reading meters.
- COMMON PROPERTY** has the same meaning as in the *Strata Schemes Management Act 2015 (NSW)*.
- HUNTER WATER** means Hunter Water Corporation, a public authority within the meaning given to that term in the *Strata Schemes Management Act 2015 (NSW)* and a *State Owned Corporation Act 1991 (NSW)* its successors and assigns.
- HUNTER WATER DESIGN CRITERIA** means the Hunter Water design criteria as varied from time to time.
- LOT** has the same meaning as in the *Strata Schemes (Freehold Development) Act 1973 (NSW)*.
- OCCUPIER** means any person in lawful occupation of the Lot.
- OWNER** means the registered proprietor for the time being of any Lot, their successors and assigns.
- OWNERS CORPORATION** means a corporation constituted under Section 8 of the *Strata Schemes Management Act 2015 (NSW)*.
- SUB METER** means the sub meter installed for each Lot to records the amount of water used by each Owner or Occupier.
- (2) All Owners and Occupiers of Lots must:
- (A) ensure all water connections (including the water meter assembly) are approved by Hunter Water and are installed in accordance with Hunter Water Design Criteria and ensure that all water connections including the water meter assembly are repaired and maintained at the sole expense of the Owner as required by Hunter Water (acting reasonably) from time to time;
 - (B) modify the water meter assembly when necessary or required to do so by Hunter Water to comply with Hunter Water Design Criteria;
 - (C) ensure the water meter assembly is situated as close as possible to the street boundary of the Lot or in an accessible location on the Common Property and is Accessible at all times;
 - (D) ensure that the water meter assembly is not installed behind fences or in an enclosed area or confined space;
 - (E) ensure that the position of the water meter assembly minimises the risk of harm to Hunter Water employees/contractors. This includes the hazards such as pets, overgrown vegetation or any other obstruction in the vicinity of the water meter which would prevent safe access to the meter for reading and maintenance;
 - (F) pay any amount raised by Hunter Water from a reading of the Sub meter, in accordance with Hunter Water's Customer Contract;
 - (G) comply with any request by Hunter Water to upgrade the water meter assembly to enable Hunter Water to implement Automated Meter Reading, promptly when requested to do so; and
 - (H) when requested to do so by either the Owners Corporation or Hunter Water, promptly provide access to any water meter or associated water equipment situated within the Lot to Hunter Water's authorised personnel or personnel authorised by the Owners Corporation to allow those personnel to read any water meter, inspect all water connections including the water meter assembly and, if reasonably required by Hunter Water and subject to the Owner's obligations under paragraph (a) above carry out repair and maintenance work upon those items.
- (3) Either the Owners Corporation or Hunter Water may give a notice to the Owner or Occupier of a Lot requiring the Owner or Occupier to comply with the terms of this by-law. If any Owner or Occupier fails to comply with any requirement relating to access to the Lot or any part of the Lot or repair and maintenance of the Hunter Water meter, the meter assembly or any water equipment within a reasonable time after receipt of a notice requiring compliance, the Owners Corporation or Hunter Water may take such steps as may be reasonable to secure such access or to carry out the relevant repair and maintenance at the



access or to carry out the relevant repair and maintenance at the expense of the Owner or Occupier of the Lot.

By Law 20 Not used

21 RENOVATION WORKS AT LOT 2

1. For the purposes of this by-law:

1.1. **"Act"** means the *Strata Schemes Management Act 2015* as amended and/or replaced from time to time;

1.2. **"Authority"** means any government, semi-government, statutory, public, private, or any other authority having any jurisdiction over the Lots or the Building, including the local council;

1.3. **"Building"** means the building and improvements on the land located at 47 Yorston Street Warners Bay NSW 2282;

1.4. **"Common Property"** means the common property in Strata Plan no. 100853;

1.5. **"Costs"** means all professional and trade costs, fees, and disbursements incurred as a result of, or associated with, this by-law, the Works and Remedial Works, and any damage caused as a result of the Works and/or Remedial Works;

1.6. **"Direction"** means a written direction from the Owners Corporation to the Owner relating to the Works and/or Remedial Works;

1.7. **"Future Owner"** means the registered proprietor of the Lot from time to time, succeeding the Owner;

1.8. **"Indemnify"** means the Owner indemnifying the Owners Corporation in respect of the Works and/or Remedial Works or anything arising from the Works and/or Remedial Works, including, but not limited to the following:

1.8.1. all actions, proceedings, claims, demands, costs, damages and expenses which may be incurred by, brought or made against the Owners Corporation;

1.8.2. any sum payable by way of increased premiums; and

1.8.3. any costs or damages for which the Owners Corporation is or becomes liable;

1.9. **"Lot"** means lot 2 in the Strata Plan;

1.10. **"Owner"** means the registered proprietor of the Lot as at the date this by-law is registered, and with respect to clauses 6 to 15 inclusive includes the Future Owner;

1.11. **"Owners Corporation"** means the owners corporation known as The Owners- Strata Plan No 100853 ;

1.12. **"Remedial Works"** means the repair, maintenance, replacement and/or removal of items relating to the Works and/or Common Property affected by the Works;

1.13. **"Strata Plan"** means registered Strata Plan No 100853;

1.14. **"Works"** means the following renovation works to be carried out at the Lot:

Installation of a blind on the upstairs veranda to provide sun protection and increased privacy given the Unit development next door.

Classic Series EVO Cable Awning Open Roller will be attached to the inside of timber beam and cable panels down the uprights, this will ensure the blinds are secure in any position. in accordance with the quotes/plans prepared by Highline Blinds Luxaflex Belmont
attached to this by-law and marked with the letter 'A'

2. Where any terms in this by-law are not defined, they will have the same meaning those words are attributed under the Act.

3. If this by-law empowers the Owners Corporation to take action, it may or may not take such action in its reasonable discretion.

4. Despite anything contained in this by-law, if any clause or part of a clause in this by-law is held or found to be void, invalid or otherwise unenforceable, it shall be deemed to be severed from this by-law (or that clause) to the extent that it is void or invalid or unenforceable but the remainder of this by-law and the relevant clause shall remain in full force and effect.

5. Subject to the provisions of this by-law, the Owners Corporation grants the Owner the right to carry out the Works.

6. To the extent the Works involve additions to or alterations of the Common Property, the Works are approved for the purpose of section 108 of the Act.

7. The Owner is responsible for and must carry out Remedial Works



when and where necessary, including by Direction.

8. The Works and Remedial Works must be carried out and completed:

8.1. in a proper and workmanlike manner by licensed and/or accredited contractors using proper materials;

8.2. with due skill and care;

8.3. in compliance with the Building Code of Australia and any other Australian Standards as applicable;

8.4. in compliance with all necessary approvals from any Authority;

8.5. in keeping with the appearance of the Building in its style, colour, materials, and overall design;

8.6. so as to not unreasonably interfere with the enjoyment of Common Property or access to lots in the Strata Plan by other persons;

8.7. in a way which minimises disturbance to other persons including but not limited to minimising vibration, noise, dust, and dirt;

8.8. while ensuring that the security of the Building is maintained throughout the performance of the Works and/or Remedial Works;

8.9. while promptly and completely removing all rubbish from the Building resulting from the Works and/or Remedial Works;

8.10. while keeping all areas of the Building as clean and tidy as possible;

8.11. while promptly repairing any damage to the Building caused by the Works and/or Remedial Works;

8.12. in a way that does not interfere with the structural integrity of the Building; and

8.13. in compliance with all reasonable requirements of the Owners Corporation, including any requirements relating to access and egress of tradespersons, building materials, tools and debris.

9. The Owner is responsible for and will bear all Costs.

10. In the event lots or Common Property are damaged because of the Works or Remedial Works, the Owner is responsible for and will pay the Costs of rectifying the damage.

11. Where the Owners Corporation has incurred Costs on behalf of the Owner, the Owners Corporation may take steps to recover those Costs from the Owner as a debt, including applying to a court of competent jurisdiction for appropriate orders.

12. The Owners Corporation reserves the right to issue a Direction to the Owner to remove, repair, or replace any items installed as a part of the Works and/or Remedial Works in the event they do not comply with the requirements of this by-law.

13. If the Owner fails to comply with a Direction within 3 months of the date of the Direction, the Owners Corporation may:

13.1. enter any part of the Lot;

13.2. carry out all work necessary to comply with the Direction; and

13.3. recover from the Owner any Costs relating to the carrying out of the work.

14. The Owner will sign all documents and do all things necessary to facilitate the matters the subject of this by-law.

15. The Owner will not claim upon the Owners Corporation's insurance in respect of anything arising out of the Works or Remedial Works.

16. The Owner will Indemnify and will keep Indemnified the Owners Corporation.



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